

Order Sheet
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR
Judicial Department

C.R. No.792-2018/BWP

Abdul Jabbar. Vs. Mohammad Shafique, etc.

Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary
	19.10.2018.	Mr. Javed Iqbal Wattoo, Advocate for the petitioner.

Through this Civil Revision, the petitioner/plaintiff in the recovery suit, has called in question the order dated 11.10.2018 passed by learned Addl. District Judge, Bahawalnagar, whereby his application for comparison of thumb impressions and signatures of the respondent No.1 on the pronote and receipt produced as Ex.P1 and Ex.P2 by the petitioner in evidence to support his claim has been dismissed by the said court by observing that the petitioner has already completed his evidence and after recording of evidence of the other party in rebuttal has for the first time prayed for comparison of the thumb impressions, signatures of the respondent No.1 on the pronote and receipt. The petitioner remained silent about the afore-referred comparison by the expert witness at the time of leading his evidence although the respondents had denied execution of pronote through written statement. The order for allowing or declining such comparison at the stage of rebuttal evidence, when such request had not been made at the time of leading examination of witnesses was discretionary with the court and such exercise of jurisdiction by declining such prayer does not fall within the ambit of jurisdictional defect against which Civil Revision may be exercised at this stage unless some illegality, violation of any law or procedural defect going to the root of the matter is

pointed out which has not been done or established on the record and challenge to the said order at this stage would be premature. The said order could, however, be challenged by the petitioner as an additional ground while challenging the final order/judgment/decreed passed by the court in case the same is against the petitioner. At this stage, there is no ground to interfere in the order passed by the said court. Consequently, this Civil Revision stands **disposed of** as premature.

(Muzamil Akhtar Shabir)
Judge

Zeeshan Khan